

		The Court takes Judicial Notice of the Stipulation for Entry of Judgment (ROA 53), 5/13/2026 Minute Order (ROA 56), 4/30/2026 Minute Order, 5/6/2026 Minute Order (ROA 48 & 51), and 7/9/2026 Minute Order (ROA 64). California courts strongly favor voluntary settlements and will not set them aside absent a showing of fraud, undue influence, or similar grounds. (<i>Folsom v. Butte County Association of Governments</i> (1982) 32 Cal.3d 668, 676–677.) When a party has not been prevented from knowing or exercising the opportunity to have a day in court or from presenting evidence and argument, the party’s own inability or failure to learn of material facts or the law does not constitute extrinsic mistake allowing the judgment to be vacated. (<i>National Auto & Cas. Ins. Co. v. Superior Court</i> (1986) 184 Cal. App. 3d 948, 960.) Additionally, the moving party seeking to set aside must plead and prove a meritorious case entitling the party to a fair adversary hearing, establishing that if the facts were proven, a different result would be obtained. (<i>Kuehn v. Kuehn</i> (2000) 85 Cal. App. 4th 824, 831.) Ms. Hafoka’s 4/30/2026 Ex Parte Application to continue the original court trial date was granted and set out 13 days later. On 5/13/2026, Ms. Hafoka appeared in Court, all the terms of the Stipulation were read on the record by the Court, and Ms. Hafoka agreed to the terms of the Stipulation. More than two months after the Stipulation for Entry of Judgment, after the Plaintiff filed a declaration of noncompliance with the Stipulation seeking possession of the property, Ms. Hafoka filed a motion to vacate the Stipulation. The Defendant fails to establish fraud, undue influence, or extrinsic mistake. The Court DENIES the Defendant’s Motion to Reopen and Reconsider Judgment. The Court’s ruling on 7/9/2026 Minute Order remains the order of the Court. The Plaintiff is ordered to provide notice of the Court’s ruling.
8	30-2026-01558581 Far West South Coast, Ltd. vs. Platek	The Court has read and considered the Plaintiff’s Motion to Deem Requests for Admission, Set One, Admitted (ROA 89) and Defendant’s Response (ROA 67). The California Supreme Court held, “Subdivision (k) provides that a propounding party who fails to receive a timely response may move for an order that "matters specified in the requests" are deemed admitted. The nonresponding party can avoid the deemed admitted order by serving a verified response before the hearing on the motion. (Ibid.) The failure to do so, however, results in automatic entry of the order. (Ibid.)” (<i>Wilcox v. Birtwhistle</i> (1999) 21 Cal. 4th 973, 978.) Plaintiff filed the Motion to Deem Answers Admitted on July 20, 2026, and Defendant served on the Plaintiff verified responses on July 23, 2026. The Defendant filed responses before the hearing on the motion; therefore, the Court will DENY the Motion to Deem Request for Admissions, Set One, Admitted.

		As previously ordered by this Court on 8/5/2026, the Plaintiff is ordered to arrange a meeting pursuant to Orange County Superior Court Local Rule 317 prior to Monday's (8/10/2026) Pretrial & Jury Trial Hearing at 8:30 AM.
9	30-2026-01583269 La Habra Woods Associates vs. Rodriguez	The Court has read and considered the Defendant's Demurrer to the Complaint for Unlawful Detainer and Motion to Strike (ROA 13), the Complaint (ROA 2) and the Plaintiff's Opposition (ROA 21). It is apparent to this Court that the Defendant used a boilerplate motion found online without changing the contents to match the facts in the case. For example, on page 2 of the Defendant's motion, it says "Paragraph 10.a(3) of the main Complaint pleading stated that the alleged 3-day notice was posted at the door on 8/01/2022" but that is not factually accurate, as the Complaint (ROA 2) answers that question with posting occurring on "06/09/2026". Additionally, the Defendant's moving papers say that the Complaint is a violation of "Los Angeles City Ordinance 186606," which is not applicable as the premises are located in the City of La Habra in the County of Orange. The Court DENIES the Motion to Strike. The Court OVERRULES the Demurrer. The Court orders the Defendant to file an Answer within 5 calendar days. The Plaintiff is ordered to provide notice of the Court's ruling.
10	30-2026-01583629 Simin Shapouri As Holder Of The Master Lease vs. Joseph	The Court has read and considered the Defendant's Demurrer and the Complaint (ROA 2). The Court takes Judicial Notice of the Proof of Personal Service (ROA 8). Defendant Matteo James Joseph aka Matvey Kirillovich Yozhikov filed this demurrer stating that the other two defendants vacated the premises on June 19, 2026 (Nicholas Temmermand) and June 25, 2026 (Susan Jo Joseph). Mr. Joseph states that Defendant notified the Plaintiff via written communication after service of process on July 11, 2026. The Proof of Service (ROA 8) signed by registered process server David Cunningham (Orange County #1895) shows personal service of Susan Jo Joseph at the premises address (635 Nyes Place, Laguna Beach, CA 92651) on July 19, 2026 at 9:30 AM, which is after the date on which Mr. Joseph alleges that she vacated the premises. The Court OVERRULES the Demurrer. The Defendants are to file an Answer within 5 business days. The Plaintiff is ordered to provide notice of the Court's ruling.
11	30-2026-01580043 Mahgerefteh vs. Hawes	The Court has read and considered the Defendant's Demurrer to the Complaint (ROA 30), the Complaint (ROA 1) and the Plaintiff's Opposition (ROA 34).